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Do you hear the people sign?: A critical discourse analysis of comments on a 2015 online petition opposing North Carolina's ag-gag law

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ABSTRACT

This study analyzes the discourse of consumer-citizens who oppose ag-gag legislation, specifically North Carolina's House Bill 405 (HB405), and considers how cyber activism (e.g. signing an online petition) offers insight into consumer-citizens' perspectives. It situates HB405 and the bill's opposition within the larger context of concentrated animal feeding operations, the global trade of meat, undercover animal activist investigations, and state legislation affecting undercover investigations. Critical discourse analysis of the 8000 comments signers added to a Change.org petition opposing HB405 revealed three general themes: (1) application of the logic of post 9/11 citizen surveillance to their opposition to ag-gag, (2) description of a moral right to know about the practices of industrial animal agriculture, and (3) an understanding of how the effects of HB405 transcended the boundaries of the state that sought to adopt the legislation. These findings have implications for both research on cyber activism and strategies for advocacy efforts.

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The feathers of chickens, packed in wire cages stacked high on the tractor trailer in front of me, flew over my windshield, and I swallowed hard. 'Don't cry,' I told myself. The chickens looked like spent egg layers (the term for adult hens past the prime of production), and I felt a knot in my throat as I contemplated their lives. I wanted to look the part of a competent, rational advocate, complete with a red blazer and pearl necklace. I had so carefully applied eyeliner and mascara and adorned my cheeks with pink that morning. If I cried, my makeup would streak, and my credibility—and that of the tens of thousands of petition signers whose signatures I carried—could be jeopardized by my 'indecorous' appearance. I wanted to bail on the whole thing, but the sight of these chickens reminded me of why I was driving to the governor's mansion on 28 May 2015. I needed to deliver a hefty box containing thousands of signatures in support of my Change.org petition (Rosenfeld, 2015) asking Governor McCrory to veto North Carolina House Bill 405.

House Bill 405 (HB405) (subsequently ratified as the Property Protection Act, PPA 2015, vetoed by the governor, then overturned by the legislature, and finally declared

unconstitutional by the courts), made it illegal to record audio or video on any work premises for any purposes other than ‘bona fide’ work purposes. Animal welfare and rights groups refer to such legislation as ‘ag-gag,’ associating such bills with industrial agriculture protectionism. Authoring a petition against HB405 was not happenstance: In May 2015, I was an active volunteer for an animal advocacy group and, consistent with Broad’s (2016) analysis of animal-business and animal-advocacy groups’ discourse, I believe(d) that ‘ag-gag ultimately perpetuates an unsustainable and inhumane industrialized system of human-animal interaction’ (p. 57). Broad (2016) offers a detailed discursive analysis of the narratives, storytelling strategies, and positions of industrial animal agribusiness, small-scale producers, and animal advocacy and First Amendment interests on ag-gag legislation. Alongside the positions of these groups, a majority of American citizens oppose ag-gag and view efforts to introduce such legislation suspiciously (Robbins et al., 2016), though less is known about how citizens engage with and make sense of ag-gag legislation. This paper aims to shed light on the discourse of the citizens who signed a petition opposing HB405.

Scholars from business to English to psychology have examined different aspects of online activism. Psychologists have explored the role that personality traits, like openness and agreeableness (Ha et al., 2013; Russo & Amnå, 2016), and personal characteristics, like gender (Brundidge et al., 2013), play in the likelihood of a person signing a petition. Scholars have looked at the relationship between message construction and signers’ emotional responses, finding that the use of images of corporate malpractice victims in petitions tends to generate a compassionate response that mobilizes a willingness to help but also produces anger and a desire to punish (Antonetti & Manika, 2017). A petition’s original text is not the only source for emotional engagement. Researchers found that the presence of negative comments left by other signers creates a contagion effect of anger and anxiety (Koenig & McLaughlin, 2018). Notably missing from this body of research is an examination of how attending to the themes in signers’ comments may help advocates construct more effective petitions.

In recent discussions of online advocacy campaigns, a controversial issue has been the nature and usefulness of signing petitions. On the one hand, some argue that digital petitions amount to little more than ‘slacktivism’ (Gladwell, 2010; White, 2010). From this perspective, the signing of online petitions is understood as a low-investment and ineffective activity to remedy important social issues. These concerns warrant attention. Schumann and Klein (2015), using an experimental design to study the interaction of online and offline activism, found that easy activism – like signing a petition or ‘liking’ a campaign’s post – reduced offline engagement. However, they also found that online activism does address a need for a sense of group membership. Further, others argue that gestures made online build awareness and enable social change through the accumulation of efforts (Ingraham, 2020; Kristofferson et al., 2014; Vie, 2014). Online activism can be understood as sites of dissent (Hinderaker, 2020) and as ‘gestures of concern’ that can ‘help build our affective commonwealth’ (Ingraham, 2020, p. 5). Though their measurable impact may be imperceptible, gestures of concern are everyday aesthetic and rhetorical practices that generate the conditions necessary for larger social and political change.

I share concerns about click-through activism’s efficacy for social change and endorse Ingraham’s notion of the rhetorical sociality of gestures of concerns. There are, however, other aspects of online activism that warrant attention: online petitions should be

considered important discursive sites for gaining insight into the perspectives – the meanings, beliefs, and values – of online activists (cf. Thimsen's, 2015 analysis of online petitions as generating a collective democratic subject, the *demos*). Further, I contest a notion of 'online activism' that invokes a sense of a 'digital dualism,' separating petition signers from their embodied lives and practices.

My objectives for this analysis are two-fold: First, to extend the findings of Broad (2016) and Robbins et al. (2016) by examining the discourse of consumer-citizens who oppose ag-gag legislation. The term *consumer-citizen* is used to reference the signers' dissent as both democratic subjects opposing a policy and as consumers whose market options are contingent on such policies. Second, I seek to demonstrate that the comments made on Change.org petitions are instances of cyber activism and gestures of concern *and also* informative sites of inquiry. This study highlights online petitions as sites of political struggle over who can surveil whom and for what purposes.

Of calves and CAFOs: situating HB405 in animal agriculture and activism

To situate HB405 in its sociopolitical and historical context, it is necessary to understand the evolution of concentrated animal feeding operations (CAFOs), as well as the arguments for and concerns with CAFOs. The USDA defines animal feeding operations (AFOs) as sites to 'congregate animals, feed, manure and urine, dead animals, and production operations on a small land area. Feed is brought to the animals rather than the animals grazing or otherwise seeking feed in pastures' (United States Department of Agriculture [USDA], n.d.). In the U.S.A., there are about 450,000 AFOs. A CAFO is an AFO with more than 1000 'animal units,' in which 'an animal unit is defined as an animal equivalent of 1000 pounds live weight' (USDA, n.d.). Another way to think of these numbers is not the 'live weight' but the dead bodies. Approximately 90,000 cattle are killed every 24 h in the U.S.A., and 14,000 chickens are killed every minute (Wilson, 2014). CAFOs began in the United States in the 1950s, during the era of Fordist factory production. The industrialization of farming is reflected in labor force changes: in the mid-nineteenth century, farmers constituted about 64% of the labor force; now only about 2% are farmers (Wilson, 2014). As the number of farmers has decreased, the population has steadily increased.

CAFOs are part of the global, capitalist economy of agriculture production and enable the animal-industrial complex to meet a growing demand for meat, milk, and eggs with fewer workers (Hribar, 2010; Wilson, 2014). CAFOs maximize productivity and profitability. As Kingery (2012) put it, CAFOs are worth billions and feed millions.¹ In North Carolina, pork and poultry make up two of the state's top three agricultural exports (tobacco is third), making them significant contributors to the state's multibillion dollar industry. However, the conditions produced by the close confinement of large numbers of animals generates concerns about public health, worker endangerment, environmental degradation, and the treatment of animals housed in CAFOs (Moses & Tomaselli, 2017).

CAFOs present important concerns for environmental justice (cf. Mohai et al., 2009 for a thorough, if dated, overview of racial disparities in exposure to environment toxins, environmental catastrophes, and effects of climate change). In 2010, National Association of Local Boards of Health (NALBH; Hribar, 2010) published a resource to

help local boards of health deal with concerns about the presence of CAFOs in their communities. The NALBH concluded that '[c]oncentrated animal feeding operations or large industrial animal farms can cause a myriad of environment and public health problems' (Hribar, 2010, p. 16). These concerns for local – and global – health include pollution of ground and surface water; degraded air quality due to the presence of ammonia, hydrogen sulfide, methane, and particulate matter; production of greenhouse gases that contribute to climate change; the creation of breeding grounds for insect vectors and the presence of pathogens in manure; and contribution to antibiotic-resistant bacteria. The NALBH further noted that property values decrease when CAFOs are sited in a community (Hribar, 2010).

There are also significant concerns with worker safety. Ramos et al. (2018) looked at the self-reported injuries and health issues of immigrant workers in a swine CAFO. Many CAFO positions are filled by immigrant workers who 'may be vulnerable due to their immigrant legal status, the contingent nature of their employment, and their mobility,' as well as the possibility of limited English proficiency that could restrict access to information on occupational health and safety and labor rights (Ramos et al., 2018, p. 1). Such domestic and industrial conditions are reminders, as Weheliye (2014) points out, that not all human beings 'have been granted equal access to western humanity' (p. 10) and that many black, Indigenous, and people of color live and work in conditions that draw attention to the disparity.

Another primary concern with CAFOs is the treatment of the so-called 'animal units.' Animal welfare and rights activists seek to undo the erasure that words like 'animal units' perform and to forefront the individual animals who live and die in these industrial operations.² CAFO conditions create pain, stress, and frustration for the animals, which can lead to aggressive behavior, including cannibalism. Part of the 'efficient housing' of animals in CAFOs includes techniques to prevent the lost capital of animals who die or otherwise underperform from inter-animal aggression. These techniques include debeaking chickens and tail docking pigs. In addition to medical procedures performed, animals living in CAFOs are often subject to multiple abuses, ranging from sexual assault (Wilson, 2014) to beatings (Galli, 2012; Kingery, 2012; Landfried, 2013; Moyer, 2015) to the grinding of live, male chicks (Kingery, 2012).

The interactions between CAFOs, citizens, undercover activists, and media and legal apparatuses constitute a site of struggle over the politics of visibility. Citizens are generally unaware of the conditions that may exist in CAFOs, which Wrock (2016) argues is part of the 'out of sight, out of mind' strategy of animal agribusiness. In response, a key tactic of animal welfarists and activists is to highlight the living conditions of animals in CAFOs in the hope that the media and the market can drive change (Broad, 2016; Kingery, 2012; Moses & Tomaselli, 2017). Undercover videos of CAFOs have been successful in exposing the 'horrific institutionalized abuses' (Moses & Tomaselli, 2017, p. 185), creating significant PR issues and the loss of millions of dollars in profits for industrial animal agriculture (Kingery, 2012), and increasing the uptake of plant-based diets (Wilson, 2014).

Given the influence of undercover videos, the agricultural sector has fought back, including through the sponsorship of 'legislation aimed at criminalizing undercover investigations of their farms' (Calarco, 2020, p. 35). These laws, commonly referred to as 'ag-gag laws,' were first introduced in 1990 in Kansas to limit the documentation

and communication of practices in animal agriculture (cf. Kingery, 2012; Marceau, 2015 for histories of ag-gag laws in the U.S.A.). Their purpose is to have a ‘chilling effect’ on animal welfare and rights activism (Ceryes & Heaney, 2019).

There are multiple ways that the broad umbrella of ag-gag laws can create a chilling effect on activism: (1) Under the Federal Animal Enterprise Terrorism Act of 2006, a worker who quits a CAFO and protests outside the facility could face charges of terrorism if the owner of the CAFO expresses feeling threatened (Lovitz, 2010); (2) State ag-gag laws criminalize obtaining a job with the intent to be a whistleblower (Wrock, 2016); (3) Newer ag-gag laws have added time constraints to video documentation. Depending on the state, video footage must be submitted to authorities between 24 and 120 h after being captured. Proponents of these laws say that such measures protect the animals by ensuring that abuse is addressed promptly. Opponents argue that these laws prevent activists from documenting a pattern of behavior over time, which allows CAFOs to dismiss footage as a ‘one-time’ event or the result of a sole bad actor and, therefore, gives credence to the claim that activists are creating deceptive, non-representative videos (Shea, 2015).

Ag-gag laws have generated numerous concerns and challenges over the violation of First Amendment rights to free speech (Sanders, 2019), though many laws are carefully written to avoid violating First Amendment rights (Landfried, 2013). In addition to the legal challenges, ag-gag laws can also backfire on the legislators who write them—between 64 and 71% of citizens oppose ag-gag legislation (Robbins et al., 2016; Wilson, 2014). Rather than preventing negative publicity from the undercover videos, ag-gag laws reduce the perceived trustworthiness of agribusiness, increase negative perceptions of the conditions animals are kept in, and increase support for animal welfare. Indeed, it seems the *intent* of governments to restrict the flow of information undermines citizens’ trust in industrial agriculture (Robbins et al., 2016).

Broad (2016) explores how three competing narratives frame the ideological battle over industrial agriculture. He found that the large-scale animal agriculture industry believed that the public has a right ‘not to know.’ That is to say, they felt that feeding a global society through an industrial-scale farming model was complicated and ‘every-day consumers do not understand what common practices are . . . the farm protection laws ensure they are not misinformed about or frightened by . . . standard operating procedure’ (p. 52). However, small-scale animal agriculture producers opposed ag-gag legislation because, as Robbins et al. (2016) found, the existence of such laws damage public perception of farmers and farming practices. They argued for transparency of information for consumer-citizens. Finally, animal advocates and First Amendment defenders opposed ag-gag on the grounds that such legislation perpetuates animal abuse and threatens workers’ rights and consumer safety. This article extends Broad’s work by analyzing the discourse of a fourth stakeholder community: the consumer-citizens who oppose ag-gag legislation.

I’m signing because: data and methodology

It is in the context of the dominance of CAFOs, pro-animal activism, and the sponsorship of ag-gag laws that North Carolina’s HB405 was produced. North Carolinian CAFOs have had a number of undercover investigations, including the 2012 investigations

into a Butterball farm (Galli, 2012), the 2014 footage from Harnett County (WRAL, 2014), and video from the Mountaineer Farms branch in 2015 (Jarvis, May 6, 2015). On 20 May 2015, the NC General Assembly presented HB 405 (ratified May 19) to Governor McCrory for his signature.

North Carolina's HB405 went further than many U.S. ag-gag laws in that it contained language that made it an offense for employees to enter 'the nonpublic areas of an employer's premises for a reason other than a bona fide intent of seeking or holding employment or doing business with the employer and thereafter without authorization records images or sound occurring within an employer's premises and uses the recording to breach the person's duty of loyalty to the employer' (HB405, 2015, § 99A-2.b.1). In other words, the bill provided grounds for any employer to bring a civil suit against an employee with unauthorized recording(s) of the workplace. To compensate for violations, the courts were permitted to award parties equitable relief, compensatory damages, costs and fees (including attorneys' fees), and damages up to \$5000 a day for each day the defendant acted in violation of the law (HB405, 2015, § 99A-2.d.-4). Thus, HB405 came to be known not only as an ag-gag law but as an anti-whistleblower and anti-sunshine law. Indeed, even sponsors of the bill said calling it ag-gag was misleading because the bill covered 'much more' (Jarvis, May 27, 2015).

Animal welfare groups were joined by AARP, wounded veterans, labor groups, the N.C. Council for Women, and the Domestic Violence Commission in urging Governor McCrory to veto the bill (Jarvis, May 19, 2015; June 3, 2015). Consistent with Broad's (2016) analysis of small-scale producer discourse, the Carolina Farm Stewardship Association (a nonprofit organization that encourages local and organic agriculture) also called for a veto, saying the bill gave a free pass to those who recklessly cut corners and generated mistrust that threatened responsible farmers (Jarvis, May 21, 2015). In the statements and image events of nonprofits opposing the bill, the discourse of animal advocacy traced narrative lines similar to those Broad (2016) mapped.

On 28 May 2015, I delivered a printout of the signatures to my Change.org petition to the governor's mansion. The 100,000+ printed signatures had literal weight – the hefty box contained reams of papers that transported the signatures from the digital screen and embodied them in a substantial, material form. On May 29, Governor McCrory vetoed the bill, and I delivered the news of success to the petition's signers. However, on June 3, the General Assembly overrode McCrory's veto, and HB405 became law as the Property Protection Act. Finally, on 15 June 2020, a federal court struck down the PPA as unconstitutional (Sorg, 2020).

My archive for the discourse of HB405 included multiple articles and videos from local news sources (*News & Observer*, *The Charlotte Observer*, WRAL), statements from nonprofits, the bill's official documentation and related press releases, data from the North Carolina Department of Agriculture and Consumer Services, mentions on Twitter accessed through a Brandwatch search, and my petition and its comments. For the purposes of the current investigation, I focused on the petition comments and the nuance they provide of the positions that citizens take in their opposition to ag-gag; remaining parts of the archive are used to provide context for the analysis.

Petitions signed on Change.org prompt signers to fill in an optional box stating 'I'm signing because.' For this petition, approximately 8000 were comments left. While this is only a small fraction of the total signers, the comments – if printed – would amount to

376 single-spaced, 12-font Arial pages. On Change.org, petition signers are able to choose their level of publicity. Signers may include a comment of support or sign without comment. Signers also have the option of remaining anonymous, which some signers and commentators on this petition chose to do. Because petitioners' comments are public information, no attempt was made to obtain consent for their use; however, quotations taken from comments do not include petitioners' names (where those were provided).

To understand the comments, I conducted a critical discourse analysis (CDA) starting with an inductive, comment-by-comment generation of codes. In the interest of transparent reflexivity, I should note the inductive coding of comments generated an analysis vastly different from what I had imagined. Given that I authored the petition as a member of an animal advocacy group, I expected the analysis to yield insight into citizen understandings of the treatment of animals in CAFOs and their moral grounds for contesting CAFO conditions. Although there were many pro-animal groups commenting on HB405 and much of the media coverage focused on pro-animal groups, I was surprised to find that about 40% of the comments did not mention 'animal(s).' I used *in vivo* codes to preserve participants' meanings (e.g. codes that maintained the participants' use of words, such as 'hide' and 'see something'). I coded comments until I stopped generating categorically unique *in vivo* codes,³ which took 40 comments. After initial coding, I used keywords to filter comments for each theme (e.g. 'surveillance' had keywords of 'hide,' 'hiding,' 'see') and continued focused coding through an iterative method of constant comparison and theme generation (e.g. 'surveillance') by considering which codes best accounted for the data and what the comparisons between codes might indicate (Charmaz, 2014). In addition to the close reading techniques of comment-by-comment coding, I also engaged distant reading (cf. Hayles's, 2013 article on combining close and distant reading) techniques to supplement my analysis. These included running the entire corpus of petition signatures through Voyant (an open-source, web-based application for textual analysis) and running the thematized sections through Voyant individually. Below, I describe the CDA I conducted within and across the three prominent themes (surveillance, morality, complexity) and their codes.

CDA is an analytic practice that attends to power, ideology, and historicity of discourse; the instability of meaning and identity; and the functions that language performs in micro and macro contexts of use. CDA focuses on social problems and political issues (Laclau & Mouffe, 1985; Van Dijk, 2001). Discourse is understood as ideological social action, and CDA asks what functions a discourse is performing, what relations and relations of power a particular discourse brings to light, and how the discourse might have been otherwise. Two key concepts for this analysis are Laclau and Mouffe's (1985) notion of articulation and Kim's (2015) multi-optic framework. Laclau and Mouffe (1985) describe articulation as 'any process establishing a relation among elements such that their identity is modified as a result of the articulatory practice' (p. 105). Articulation includes both the 'speaking forth' and the 'linking' of disparate elements and communities. The processes, practices, and methods of linking are central to the study of articulation; as Hall (1996) points out, there is no necessary link between any discursive concepts, which enables discourses to be brought together in different ways. Kinsella (2015) further stresses the import of articulation for the discursive analysis of advocacy work:

Articulation theorists . . . emphasize that such arguments are not logically inevitable, but are enacted contingently by particular actors in particular contexts. Many such actors may operate across multiple contexts, but their actions and discourses become linked, while recursively informing the subjectivities of the actors who produce them. Articulation perspectives stress the importance of examining these enactments in local settings, and doing so can yield valuable insights informing policy, critique, and strategy. (p. 348)

Articulation, as a theoretical concept, can help generate what Kim (2015) calls a multi-optic framework. A multi-optic framework attends to complex relationships and intersections of oppression. Rather than a single-optic framework that foregrounds one injustice while backgrounding others, a multi-optic framework attends to multiple concerns, oppressions, and injustices and generates complex taxonomies of power. These complex taxonomies of power are crucial to the work of moving beyond harmful, hierarchical dualisms, like human/animal, which serve to oppress animals and humans alike (cf., Boisseron, 2018; Ko & Ko, 2017).

This analysis proceeds in the ethos of examining the local enactments of the (dis-)articulations made by the signers of a Change.org petition opposing HB405. Selected samples of the petition comments are presented with analysis below. In these representative examples, signers take up the logic of surveillance, question how to eat well in the conditions imposed by ag-gag, and acknowledge the complexity of a global meat market.

Citizen watchdogs: the extension of NTHNTF and see something, say something

The September 11 attacks created conditions that enabled the U.S. government to develop and utilize surveillance technology in the interest of national security. As part of assuring safety, individuals' right to privacy became contested (Fetzer, 2003). The Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001, or PATRIOT Act (Department of Justice, n.d.), extended the government's reach into the everyday lives of U.S. citizens, such as granting access to private communications (Electronic Privacy Information Center, 2019). Governments constructed the legitimacy of their surveillance through discourse that positioned the loss of (degrees) of liberty as necessary for safety and by assuring citizens that 'if you have nothing to hide, you have nothing to fear' (NTHNTF; Abdo, 2013; Fetzer, 2003).

Simultaneous with the U.S. government's utilization of technologies and strategies of surveillance – and their uptake by European governments (Newsweek Staff, 2004) – audio and video recording technologies became increasingly available to citizens for everyday use through small and (comparatively) affordable devices. These technologies enabled citizens to engage in lateral surveillance (Reeves, 2017) – or monitoring each other – and sousveillance (Mann et al., 2003) – the monitoring of authorities. Further, authorities encouraged 'watching' through campaigns urging citizens to participate in the fight against terrorism with the slogan, 'If you see something, say something' (Reeves, 2017).

One theme present in HB405 petition comments was an extension of the NTHNTF discourse *from* government justification of surveillance for national security *to* citizen watchdogs seeking assurance of ethical behavior from corporations and governments.

Comment 1⁴: Trying to criminalize citizens who want to report abuse, is Orwellian. People and corporations who are doing the right thing have nothing to hide.

C2: I work in a animal science field. Most producers I've seen ARE caring and ethical. By having a anti-whistle blower law on the books, it implies there is something to hide. We should welcome anyone seeing the treatment of our animals (if not, then something should be improved.)

C3: I hope they understand trying to push for this bill is just shouting loud and clear, they have something horrid to hide

C4: If you have nothing to hide ... then there is no need for this.

C5: Even in 'big business', animals deserve our respect and care, both as living creatures and as a large food source for the country. Please don't stop people who see something from saying something.

C6: I'm an American and I have the right to say something if I see something amiss. This is no different then coming forward when you think someone might be about to do a terrorist act. I think endangering our health and safety is a terrorist act.

The transportability of NTHNTF and 'see something, say something' from justifying government surveillance to authorizing citizen sousveillance is partially afforded by the integration of these rhetorics (i.e. NTHNTF and 'see something, say something') into popular culture and 'commonsense,' as well as the uptake of corporate personhood. Multiple legal battles have upheld the rights of corporations (e.g. freedom of religion; freedom of political speech). Here, commenters applied the logic of *responsibility of personhood* to corporations. In these comments, opponents of HB405 removed the logic of NTHNTF from its 'top-down' instantiation and applied it as justification for the protection of whistleblowing activities. Whereas surveillance of citizens may be necessary for national security, sousveillance of corporate practices is necessary to prevent an Orwellian threat to a free and open society. As with the rearticulation of NTHNTF, 'see something, say something' was also taken up by opponents of HB405. In example C6 above, the full rhetorical force of 'see something, say something' is maintained, as the commenter even preserved the terrorism context from which the slogan emerged. Thus, it also works against the Animal Enterprise Terrorism Act by contesting what counts as terrorist activity. In each instance, commenters argue that the logics of surveillance (i.e. NTHNTF and sacrificing privacy for 'health and safety') and the associated call to action (i.e. 'see something, say something') justify citizens' rights to sousveillance.

The comments illuminate signers' articulation of numerous perspectives – beyond animal welfare and rights – to the opposition of ag-gag laws. The comments served not only to oppose a particular piece of legislation but also to intervene in the 'politics of common sense' (Angus, 1992, p. 535). The HB405 petition offered commenters more than a site to debate the (de)merits of CAFOs; it provided grounds to contest corporate and state articulations of *who and what is surveillable by whom and for what purposes*. Thus, ag-gag legislation is not a single-optic issue of animal welfare but a site of complex taxonomies of power and multiple oppressions (Kim, 2015), including citizens' rights of expression and access to protection from corporate actors via the legal protection of whistleblowing.

Eating well: A hidden body is a sufferable body

As Butler (2009) argues, the processes that render a body unworthy of grief over the harms that befall it are the same processes that allow violence to perpetuate. Lives – and deaths – get classified and understood as grievable or as not mattering. Similarly, Agamben (1998) urges us to ‘investigate carefully the juridical procedures and deployments of power’ by which beings can be rendered as so lacking intrinsic worth ‘that no act committed against them could appear any longer as a crime’ (p. 171).⁵

Some petition commenters focused their HB405 opposition on the notion that hiding animal bodies – by prohibiting actions that made animal lives in CAFOs seeable and knowable – is an immoral practice that makes inflicting suffering on animals permissible.⁶

Comment 7: AG-GAG bills are unethical, immoral and allow animal abusers to hide behind it so that their shameful activities go undiscovered. Anyone who proposes, supports or votes in favor of an AG-Gag bill should be considered an animal abuser until proven otherwise.

C8: I am not ethically against eating meat. But I am against the torture of animals in our meat industry. Please help farm animals by signing this petition to stop North Carolina’s Industrial Farming Lobbyists from passing a bill that hides their practices from the public.

C9: If a tree falls in the forest - did it make sound? I don’t know, but if an animal is tortured in private, it is still inhumane. period. Don’t let the food industry hide their inhumanity toward animals - let the public decide based on how animals are treated if they want to buy from that company. Letting them hide the cruelty is the same as endorsing it.

Commenters make a distinction between the ends (i.e. slaughter) and the means (i.e. the living conditions of CAFOs) of industrial animal agriculture. For a broad group of ag-gag legislation opponents, the concern is not whether animals are killable for human diets but whether their suffering is permissible, and opaque agricultural practices are understood as affording the abuse of animals in industrial settings.

The matter of permissible suffering reflected in these comments is reminiscent of Derrida’s (1991) notion of ‘eating well.’ Because one must eat, Derrida argues, the primary question should not be *what* does one eat but *how does one eat well?* Derrida offers ‘respect for the other’ to be eaten (p. 115) as a place to begin answering that question. Petition comments suggest that *eating well* and respecting the other are not purely individual affairs but dependent on practices of industry and state.

These comments illuminate another injustice of ag-gag legislation: the ways in which consumer-citizens share a common struggle against industrial agriculture because it affects their local, everyday practices of eating and their sense of their rights as consumer-citizens. Proponents of industrial agriculture maintain that citizens do not have a *right* to know about the practices of food production: ‘There is no constitutional right to know where your food came from. It just does not exist’ (Miller quoted in Broad, 2016, p. 53). First Amendment advocates challenge the position of industrial agriculture, arguing that ‘the statutes were fundamental infringements on the rights of free speech’ (p. 54). Both the industrial agriculture and First Amendment proponents are discussing *legal* rights. However, petition signers shift the discussion to *moral* rights. A moral right is a justified claim or entitlement owed to a rights-holder. Petition commenters put forth the perspective that because they have to make choices about what they eat, they have a

moral right to information that would help make those decisions in ways accordant with their values.

The meat market: ag-gag and complexity

In Giraud's (2019) *What Comes After Entanglement?*, she queries the productive moves afforded by the relational emphasis of new materialism. Specifically, she expresses concerns about the potential paralyzing effects of 'irreducible complexity' and the insufficiency of a relational ontology for mobilizing action. Even if someone accepts a deep, interconnected worldview, that does not mean they know how to live well in such entangled worlds. She proposes an ethics of exclusion, where we constantly ask ourselves who is being excluded from what and for what purposes. Crucially for Giraud, we have to accept responsibility for those exclusions and their effects. Giraud (2019) contends that one problem with irreducible complexity is that it does not lend itself well to advocacy work. Certainly, it is easy to imagine how seeing the linkages and instability of all categories and identities could stymie a would-be activist, and why strategic essentialism – or the acting 'as if' categories are stable for the purpose of mobilizing political action – is necessary in advocacy.

However, many commenters evince complexity in their rationale for opposing the bill:

Comment 10: Greed hurts animals and greed hurts human health. These companies want to hide what they are doing by law!!! No way. Check it out folks: Americans eat at least ten items that are banned in other countries, like arsenic fed to chickens to make them grow faster and ractopamine fed to cows and pigs to make their meat leaner and grow faster. Fed too much, cows suffer from painful joints and sometimes lose their feet. Nice, isn't it? The food industry needs to clean up its act. We NEED whistleblowers to keep some kind of check on these horrific industries.

C11: I'm signing because what happens in one state, within one company, sets a precedent that says it is ok to be torturously cruel to animals & to practice bad health regimes that adversely affect both the farm animals & the consumers - it sends the message that not only does the govt sanction it, but also that the public doesn't care. The moral issue is not contained within one place or situation - it is global.

C12: The capitalist economic model of deregulation and putting profits ahead of people is failing in making our lives better. Abusing animals, the environment, and producing unsafe food is not acceptable and neither are laws that allow the industry to hide these practices.

C13: A free market requires full transparency. Secrecy corrupts capitalism.

C14: Any attempt anywhere to prohibit public scrutiny is offensive and unAmerican.

Ag-gag laws draw attention to issues of state laws, capitalism, industrial agriculture, and globalization. The majority of people who signed the petition were not North Carolina residents. Signatures from non-residents runs antithetical to most advocacy advice, in which people are encouraged to get the constituents of an elected official to express their support/disapproval of a measure. However, who counts as a stakeholder in industrial agriculture is a complex issue. As noted in C12, HB405 may have been proposed (and eventually passed and struck down) as a state law, but North Carolina is a global exporter of agriculture and the effects of ag-gag traverse state lines. As the North Carolina

Department of Agriculture and Consumer Services' Commissioner of Agriculture Steve Troxler advocates 'North Carolina agriculture competes at the highest level in every market around the world, and the best way to raise prices paid to North Carolina farmers at the farm gate is to make sure they have access to the world market' (North Carolina Department of Agriculture and Consumer Services, [n.d.](#)).

Petition comments address the relations of global capitalism, legislation, (extra)local activism, public health and the ethical treatment of animals in the animal-industrial complex. Part of the concern with HB405 is that the marketplace is not working as some consumers envision. Citizens are expected to submit to cybervetting by potential employers (Berkelaar & Buzzanell, 2014), yet anti-whistleblower legislation penalizes the 'bottom-up' cybervetting efforts of employees and activists. Citizens are told, 'vote with your dollars' and 'let the market decide,' but it is impossible to do either if there is restricted access to information; therefore, citizens find it 'corrupting' when proposed ag-gag laws deny information about the products and processes of the marketplace.⁷ One hallmark of neoliberalism is free-market capitalism with deregulation of private corporations. However, as Hickel notes (2018),

People commonly think of neoliberalism as an ideology that promotes totally free markets, where the state retreats from the scene and abandons all interventionist policies. But if we step back a bit, it becomes clear that the extension of neoliberalism has entailed powerful new forms of state intervention. The creation of a global 'free market' required not only violent coups and dictatorships backed by Western governments, but also the invention of a totalizing global bureaucracy. . . with reams of new laws. (p. 218)

One way that commenters challenge the state-industrial agriculture articulation instantiated in ag-gag legislation is by invoking the 'free-floating legitimators' of *freedom* and *American*. Free-floating legitimators are the 'statements that are used across numerous discursive sites of contestation to reanimate and legitimate claims and assumptions that organize numerous apparatuses' (Packer, 2013, p. 26). Here, the free-floating legitimators perform an understanding of ag-gag legislation as outside of the values of a free market and, therefore, as 'unAmerican' (C15).

Ungagging cyber activists: constraints, implications, and conclusion

As with any analysis, every question asked reveals certain answers and obscures others. This analysis contains both known and unknown constraints. One unknown constraint concerns the makeup of the petition signers. While one of the strengths of this paper is that it attends to the voices and concerns of a democratic public, it also conceals other voices. This paper offered a polyvocal articulation of concerns, but the multi-optic framework remains a work in progress. Because this investigation explored existing petition discourse, it lacked information that would have provided a clearer picture of *who is participating*. For example, the petition did not collect demographic data on petition commenters and therefore it is unknown where points of homogeneity and heterogeneity may lie among the signers. A known constraint is that this analysis attends exclusively to the perspectives of U.S. residents. Finally, the discourse analysis of the comments on this petition cannot speak to how petition signers are attending to concerns of industrial animal agriculture in their day-to-day lives.

With those constraints in mind, this paper sought to extend the conversation of online petitions beyond the research on personality traits and gender differences in participation (Ha et al., 2013; Russo & Amnå, 2016), to illuminate how complex collectives can come to be articulated around a common issue and simultaneously gesture outward toward other, linking oppressions and inequalities. By attending not only to who is signing but also what they are saying, researchers and practitioners stand to gain a more multi-optic view of the concerns and injustices present in any issue, which may help to build larger, more diverse coalitions.

This paper analyzed the discourse of citizens who oppose ag-gag legislation and recognized the contribution of cyber activism (e.g. signing an online petition) in offering insight to citizens' perspectives. Looking at the comments on the HB405 petition, I found that commenters (1) applied the logic of citizen surveillance following the attacks of 9/11 to their opposition to ag-gag, (2) described a *moral right* to know the practices of industrial animal agriculture, and (3) understood the effects of HB405 as transcending the boundaries of the state that sought to adopt the legislation. These findings have implications for both research and practice. The signers' adoption of 'Nothing to Hide, Nothing to Fear' and 'See Something, Say Something' rhetoric demonstrates that the logic of opposition to ag-gag is not constructed strictly along lines of animal welfare. The NTHNTF and 'see something, say something' comments reveal how citizens articulate their positions as surveillable citizens with the notion of corporate personhood. Rather than arguing that if corporate persons are exempt from surveillance then citizen persons also should be, commenters argued that the scope of who is surveillable must be broadened to include producers of industrial animal agriculture. The NTHNTF and 'see something, say something' rhetoric illuminates how discourse from other sociopolitical contexts may be transferrable and generative of new communities concerned with how that rhetoric is/is not applied in novel contexts. In this case, the rhetoric justifying post-9/11 citizen surveillance was taken up by citizens opposed to ag-gag to draw attention to holes in that rhetoric's logic.

The concern for *eating well* seen in the comments suggests that the signing of online petitions should not be understood as the totality of a person's engagement with a complex social issue. Gladwell (2010) and White (2010) make compelling arguments for the insufficiency of click-through activism for social and political change. However, online activism not only holds potential for creating affective communities (Ingraham, 2020) and generating future action (Kristofferson et al., 2014), it is also impossible to know through signatures and 'likes' alone how else individuals may be taking up causes in their everyday lives. Online activism is better understood as one aspect of a person's real and material engagement with an issue that may or may not complement with their offline practices. As Bollmer (2018) argues, 'Acknowledging that both online and offline are material and real does not require the erasure of differences between the two' (p. 31). Future research would benefit from ethnographic accounts of the online-offline activities of cyber activists.

Finally, the comments on the role of industrial agriculture in the global marketplace speak to the ways online petition signers engage complex systems. I agree with Giraud (2019) that it is necessary to have an ethics of exclusion to enable social action. Constantly attending to connections and relations that can be made can paralyze advocacy, producing an endless chain of deferrals. We need to reduce complexity to act. However,

the signers of HB405 demonstrate that they do not necessarily bracket complexity when they articulate their motivations for signing. In addition to querying our nation's practices and justifications of surveillance and concerns about animal well being in industrial agriculture, signers of the petition demonstrated a desire for a transparent, global market. By attending to the complexity cyber activists address in their comments on online petitions, we may better understand how disparate individuals link their struggles and 'yield valuable insights informing policy, critique, and strategy' (Kinsella, 2015, p. 348).

Bringing these implications together, the act of signing an online petition – with or without comment – can be understood as a site of articulation of diverse perspectives, beliefs, and values for a collective cause. These signatures may have been collected digitally, but they belong to citizens with fully material, embodied lives. Signing a petition is a democratic practice and carries its own affordances and constraints. While digital participation may encourage click-through activism, online petition signing is also a public commitment to a cause and a contribution to the construction of a collective discursive environment. It is a vote for the ideologies and practices that signers wish to see in the world.

Notes

1. Other pro-CAFO arguments include an enhanced local economy, increased employment, and increased tax expenditures, which can lead to increased funding for schools and infrastructure (Hribar, 2010).
2. Animal welfarists and animal rights activists differ in their proposed solutions for the problems of CAFOs. Animal welfarists emphasize maximizing the quality of life and the painlessness of death for animals raised for food. Animal rights activists aim to eradicate the use of animals in industrial agriculture or to forego the consumption of animal products altogether (known as the abolitionist view). For more on the different perspectives, see Calarco, 2020.
3. For example, 'criticizing politicians' and 'criticizing state legislature' are not categorically unique.
4. Comments are presented as written, without editing.
5. Although both Butler and Agamben were discussing intra-human violence, their work has been taken up by animal studies to explore the mechanisms of intra-species violence (cf. Calarco, 2020).
6. The politics of visibility and the (il)legitimacy of torture can be transported from animal agriculture to consider instances of human torture, such as the 2004 leaked photos from Abu Ghraib.
7. Broad (2016) notes that it remains an open question whether full exposure to the conditions of CAFOs will improve the treatment of animals. However, for pro-animal groups, the issue remains one of informed consent.

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